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**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-27488-2026
DECIDED ON: 04.06.2026**

ANMOL

.....PETITIONER

VERSUS

STATE OF HARYANA

.....RESPONDENT

CORAM: HON'BLE MR. JUSTICE SANJAY VASHISTH.

Present: Mr. Mohan Singh Rana, Advocate,
for the petitioner.

Mr. Ashwani Bhatia, AAG, Haryana.

SANJAY VASHISTH, J (ORAL)

1. Present petition has been filed by the petitioner, seeking grant of anticipatory bail, in case, FIR No.151, dated 14.03.2026, under Sections 109, 115, 117(2), 121(1), 132, 324(4), 190, 191(3), 351(2) of BNS (corresponding to sections 307, 321, 325, 332, 353, 427, 149, 148, 506 of IPC), registered at Police Station Assandh, District Karnal.

2. Case of the prosecution got recorded in the FIR, by complainant – Constable Amitabh No.215/KNL, reads as under:-

“I, Constable Amitabh Singh, am posted as a Security Agent (SA) at Police Station Assandh and am responsible for gathering advance intelligence regarding incidents occurring within the jurisdiction of Police Station Assandh. In this connection, yesterday on 13.03.2026, at about 7:30 PM, while I was gathering intelligence and moving within the station area on my motorcycle bearing number HR10AA-4726, make HF Deluxe Black, I reached the Chowk in front of Ward No. 1. I was sitting on my motorcycle near the Chowk, waiting for my informer.



During this time, Rahul son of Rajender, Ankit and Ajay sons of Mahender, all residents of Ward No. 1, Assandh, also came near me at the Chowk and I started conversing with them. After a short while, about 10-15 minutes later at approximately 7:50 PM, 5-6 boys armed with sticks and batons came in a white Swift car bearing number HR05BK-1160, driving at a high speed towards us. All the young boys in the white Swift car lowered the windows and, acting in collusion, shouted, "The police SA is standing in front, and his informers are standing with him. Today, let's teach this police SA and his informers a lesson for spying." After issuing this challenge, with the intent to kill me and the boys standing near me, they directly rammed their white Swift car into my motorcycle (No. HR10AA-4726, HF Deluxe Black) on which I was sitting. Due to the impact, I fell about 15-20 paces away along with my motorcycle. The other three boys standing with me-Rahul, Ankit, and Ajay-were also injured by the collision, The white Swift car was being driven by Anmol, son of Vijay, resident of Ward No. 1, Assandh. Then, the car driver Anmol turned the car from a short distance ahead and drove back at high speed with the intent to kill me again, heading straight towards me to run me over. Seeing the car coming towards me again, I tried to move away from my motorcycle which was lying on the side. As soon as I moved slightly away from the motorcycle, the high-speed Swift car hit the fallen motorcycle. Due to the impact, the motorcycle flew up and struck me. Due to the direct hit by the car and being hit by the flying motorcycle, I sustained several injuries to my head, both hands, legs, and other parts of my body. Anmol, son of Vijay, resident of Ward No. 1, Assandh, was driving the white Swift car, Mani, resident of Pingli, Karnal, was sitting in the conductor's seat; and Jatin, son of Palaram, resident of Deragama Road, Assandh, and Aman son of Ramniwas, resident of Bilon, along with two other boys, were in the back seat, whom I can identify if brought before me. The occupants of the white Swift car (No. HR05BK-1160)-Anmol, Aman, Jatin, Mani, and two other unknown boys-colluded and, with the intent to kill me, rammed their car into my motorcycle, obstructed my duties as a Security Agent, and affected government work. As a crowd gathered due to the noise, the boys in the Swift car, upon seeing people approaching, threatened to kill me, saying,



"You escaped today, but if we get another chance, we will kill you," and fled the scene with their car. In this incident, I have sustained serious injuries to my head, both hands and feet, and other body parts; I narrowly escaped with my life. My motorcycle was badly damaged and destroyed due to the direct collision. I request you to search for the boys in Swift car No.HR05BK-1160-Anmol, Aman, Jatin, Mani, and two unknown boys-and take the strictest legal action against them. Today, I have recorded my statement, heard it, and it is correct."

3. Perusal of the FIR reveals that accused Anmol (petitioner herein), along with co-accused Aman, Jatin, Mani and two other unknown persons, was present in a Swift car, bearing registration No.HR05BK-1160, which was allegedly driven by the petitioner. Firstly, complainant was challenged by accused and thereupon, after being signalled/challenged, deliberately car was rammed into the motorcycle, bearing registration No.HR10AA-4726, on which the complainant was sitting. Due to the impact of the collision, complainant fell about 15-20 paces away with the motorcycle.

4. Learned counsel for the petitioner submits that, in fact, incident of a minor accident had occurred, while the petitioner was driving the vehicle, and FIR is registered by exaggerating and embellishing the version of events. It is further contended that complainant, who is a police official, has falsely involved the petitioner by invoking Section 109 of the BNS along with other provisions.

Further, argues that, FIR does not disclose, whether at the relevant time, complainant, Constable Amitabh, was in uniform, or that,



there was any motive to eliminate the complainant due to any prior enmity.

5. It is further submitted that the injuries sustained by the complainant are simple in nature, having resulted from a mere accidental collision between the vehicles. Petitioner also undertakes to join the investigation, provided he is granted protection from arrest by this Court. Thus, counsel prays for grant of anticipatory bail to the petitioner in the present case.

6. Notice of motion.

7. On advance notice, Mr. Ashwani Bhatia, AAG, Haryana, puts an appearance on behalf of the respondent/State, and files status report dated 02.06.2026 in Court today and the same is taken on record. Registry is directed to tag the same at the appropriate place on the file.

8. During the course of hearing, this Court queried the State counsel, who was unable to give any satisfactory response to the submissions advanced by learned counsel for the petitioner, as noticed here above.

9. Learned State counsel could not point out as to whether the accused persons were previously involved in any other case arising out of the investigation conducted at the instance of the complainant, Constable Amitabh. It was, however, stated that apart the present case, petitioner is involved in three other criminal cases. It is further clarified that complainant is neither a witness nor the investigating officer in any of those cases.



10. This Court has heard learned counsel for the parties and has also gone through the record available before it.

11. Having regard to the totality of the facts and circumstances of the case, including the nature of allegations and the fact that no grievous or serious injury is stated to have been suffered by the complainant, this Court is of the view that question as to whether the incident was intentional or accidental, shall be a matter of adjudication during trial. At this stage, custodial interrogation of the petitioner does not appear to be necessary.

12. Therefore, in the facts and circumstances of the case, this Court does not find it necessary to keep the present petition pending any further and, accordingly, deems it appropriate to dispose of the same, with the direction to the petitioner to join the investigation within two weeks from today or as and when called by the investigating officer, and in the eventuality of the arrest, petitioner would be released on bail, subject to his furnishing bail bonds to the satisfaction of the Arresting Officer. The petitioner shall also be abide by all the conditions laid down under Section 482(2) of BNSS, 2023 (earlier Section 438(2) Cr.P.C.).

13. Besides, it is directed that petitioner would hand over his passport to the Investigating Agency or to Court concerned, if he possesses. Otherwise, would submit an affidavit, disclosing the fact that he does not possess any passport.

It is also directed that before leaving country any time during trial, petitioner would seek prior permission of the Court.



14. With the directions recorded here above, present petition stands disposed of.

However, it is made clear that the present relief of anticipatory bail granted to the petitioner, is subject to his joining the investigation and extending full cooperation therein.

04.06.2026
Lavisha

(SANJAY VASHISTH)
JUDGE

<i>Whether speaking/reasoned</i>	<i>Yes/No</i>
<i>Whether reportable</i>	<i>Yes/No</i>